1. He/she holds office until he/she attains the age of 62 years[6]. Any questions regarding his/her age is to be decided by the President after consultation with the chief justice of India and the decision of the President is final.

2. He/she can resign his/her office by writing to the President.

3. He/she can be removed from his/her office by the President on the recommendation of the Parliament.

4. He/she vacates his/her office when he/she is appointed as a judge of the Supreme Court or when he/she is transferred to another high court.

**Removal of Judges** A judge of a high court can be removed from his/her office by an order of the President. The President can issue the removal order only after an address by the Parliament has been presented to him/her in the same session for such removal. The address must be supported by a special majority of each House of Parliament (i.e., a majority of the total membership of that House and majority of not less than two-thirds of the members of that House present and voting). The grounds for removal are two—proved misbehaviour or incapacity. Thus, a judge of a high court can be removed in the same manner and on the same grounds as a judge of the Supreme Court.

The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of a high court by the process of impeachment:

1. A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/Chairman.

2. The Speaker/Chairman may admit the motion or refuse to admit it.

3. If it is admitted, then the Speaker/Chairman is to constitute a three-member committee to investigate into the charges.

4. The committee should consist of (a) the chief justice or a judge of the Supreme Court, (b) chief justice of a high court, and (c) a distinguished jurist.

5. If the committee finds the judge to be guilty of misbehaviour or suffering from an incapacity, the House can take up the consideration of the motion.

6. After the motion is passed by each House of Parliament by a special majority, an address is presented to the President for removal of the judge.

7. Finally, the President passes an order removing the judge.

From the above, it is clear that the procedure for the impeachment of a judge of a high court is the same as that for a judge of the Supreme Court.

It is interesting to know that no judge of a high court has been impeached so far.

**Transfer of Judges** *The President can transfer a judge from one high court to another after consulting the Chief Justice of India. On transfer, he/she is entitled to receive in addition to his/her salary such compensatory allowance as may be determined by Parliament.*